



LAWS OF MALAYSIA

Act 780

BERNAMA ACT 1967

(Revised—2016)

REVISED BY
THE COMMISSIONER OF LAW REVISION, MALAYSIA
UNDER THE AUTHORITY OF THE REVISION OF LAWS ACT 1968
2016

BERNAMA ACT 1967

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PREVIOUS REVISION

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26 October 1990)

LAWS OF MALAYSIA

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LAWS OF MALAYSIA

Act 780

BERNAMA ACT 1967

An Act to establish and incorporate the Pertubuhan Berita Nasional Malaysia, and to provide for the management and supervision of the Pertubuhan Berita Nasional Malaysia and other matters connected therewith.

[6 April 1967]

PART I

PRELIMINARY

Short title and application

1. (1) This Act may be cited as the BERNAMA Act 1967.
- (2) This Act applies throughout Malaysia.

Interpretation

2. In this Act, unless the context otherwise requires—

“BERNAMA” means the Pertubuhan Berita Nasional Malaysia as established under subsection 3(1);

“Board” means the Board of Governors of BERNAMA appointed under section 7;

“news or news material” includes international, regional and national—

- (a) news;

- (b) photographs;
- (c) information;
- (d) features; and
- (e) economic, commodity and financial data,

in whatever form or manner.

PART II

ESTABLISHMENT OF BERNAMA, ITS POWERS AND OBJECTS

Establishment of BERNAMA and its powers

3. (1) A body corporate by the name of “Pertubuhan Berita Nasional Malaysia”, or in English the “Malaysian National News Agency”, is established with perpetual succession and a common seal.

(2) BERNAMA shall, in respect of movable or immovable property, have the power—

- (a) to acquire and hold such movable or immovable property;
and
- (b) to dispose of, or otherwise deal with, such movable or immovable property.

(3) Without prejudice to the generality of subsection (2) but subject to the Federal Constitution and this Act, BERNAMA shall have and exercise all the powers that may be necessary or expedient for the attainment of its objects or any of the objects.

(4) BERNAMA may at its discretion arrange at an appropriate time for the reception through subscription, payment, exchange or other means of international, regional and other news or news material and the distribution of the news or news material to subscribers on such terms as may be arranged.

Common seal

4. (1) BERNAMA shall have a common seal and the seal may be broken, changed, altered or made anew as BERNAMA deems fit.

(2) Until a seal is provided under this section, a stamp bearing the inscription “Pertubuhan Berita Nasional Malaysia” may be used as the common seal of BERNAMA.

(3) All deeds, documents and other instruments requiring the seal of BERNAMA shall be sealed accordingly in the presence of two members of the Board who shall sign every such deed, document or instrument to which such seal is affixed.

(4) Such signing shall without further attestation be sufficient evidence that the seal was duly and properly affixed and is the lawful seal of BERNAMA.

Power to enter into any arrangement for sharing of profits, etc.

5. BERNAMA, with the approval of the Minister and the concurrence of the Minister of Finance, may—

- (a) enter into any arrangement for sharing of profits, union of interests, co-operation or joint venture with any person or body of persons; or
- (b) establish or promote the establishment and expansion of companies under the Companies Act 1965 [*Act 125*].

Objects of BERNAMA

6. The objects of BERNAMA are—

- (a) to seek for and present complete, objective and impartial news or news material on any matter of public and national interests within and outside Malaysia;
- (b) to distribute such news or news material to subscribers on payment either in the form of fees or news exchange or both; and

- (c) to report truthfully and fairly, without prejudice to public and national interest, the views of all sections of the population of Malaysia.

PART III

BOARD OF GOVERNORS

Constitution of Board of Governors

7. (1) The management of BERNAMA is vested in a Board of Governors which shall comprise not less than eleven and not more than thirteen members appointed by the Yang di-Pertuan Agong.

(2) The Board shall consist of the following members who are citizens of Malaysia:

- (a) a Chairman;
- (b) not more than six representatives of the Government of Malaysia; and
- (c) not more than six representatives of proprietors of newspapers in Malaysia who are subscribers to BERNAMA.

(3) The number of representatives appointed under paragraphs (2)(b) and (c) shall be of equal proportion.

(4) The Chairman of the Board shall be appointed after consultations with the proprietors of newspapers in Malaysia who are subscribers to BERNAMA.

(5) The members of the Board referred to in paragraph (2)(c) shall be appointed from amongst persons nominated by the proprietors of newspapers in Malaysia who are subscribers to BERNAMA.

(6) Part I of the Schedule shall apply to the members of the Board.

Functions of the Board

8. The Board shall be responsible for carrying out the objects of BERNAMA as set out in section 6 and to formulate the general policy of BERNAMA.

PART IV**SUPERVISORY COUNCIL****Establishment of Supervisory Council**

9. A Supervisory Council is established.

Functions of Supervisory Council

10. The Supervisory Council shall have the following functions:

- (a) to ensure that BERNAMA shall at all times abide by this Act;
- (b) to consider any complaint from a newspaper, radio or television subscriber to BERNAMA alleging failure or default by BERNAMA to comply with any of the objects or principles laid down in this Act; and
- (c) to consider any matter referred to it by the Board.

Members of Supervisory Council

11. (1) The Supervisory Council shall comprise the following members who shall be appointed by the Yang di-Pertuan Agong:

- (a) a Judge of the High Court who shall be the President of the Council;
- (b) one representative of the Government of Malaysia;
- (c) one representative of the newspapers in Malaysia;
- (d) the Vice-Chancellor of any one of the Universities in Malaysia; and
- (e) one other person.

(2) The member referred to in paragraph (1)(a) shall be appointed in consultation with the Chief Justice.

(3) Part II of the Schedule shall apply to the members of the Supervisory Council.

Inquiries by Supervisory Council

12. (1) The Supervisory Council shall hold an inquiry into—

(a) any complaint under paragraph 10(b); or

(b) any matter referred to it by the Board under paragraph 10(c).

(2) For the purposes of an inquiry under this section, the Supervisory Council may—

(a) receive evidence orally or in writing; or

(b) require any person to give such information,

which in its opinion is necessary for the purpose of making a finding.

(3) The Supervisory Council shall deliver its findings and any recommendations as it deems fit in writing to the Board as soon as possible upon the conclusion of the inquiry.

(4) The findings and recommendations, if any, of the Supervisory Council shall, if so directed by the Supervisory Council, be published in full by the Board.

PART V

GENERAL

Appointment of officers and servants

13. (1) The Board shall appoint a General Manager, a Secretary to the Board and such other officers and servants as may be necessary for carrying out its functions under this Act.

(2) The General Manager, the Secretary to the Board and other officers and servants of the Board shall be engaged on such terms and conditions as may be prescribed by the Board.

General Manager

14. (1) The General Manager shall be the chief executive officer of BERNAMA who is responsible to the Board.

(2) All officers and servants of the Board shall be under the control of the General Manager.

Powers of Board to accept grants, etc.

15. The Board may accept any contributions, grants, endowments, gifts or bequests made to or in favour of BERNAMA.

Powers of Board to borrow

16. The Board may, subject to the approval of the Treasury, borrow or secure the payment of any money required by the Board for the proper carrying out of its functions under this Act.

Investments

17. (1) The assets of BERNAMA may be invested by the Board in investments authorized by law for the investment of trust funds.

(2) Notwithstanding subsection (1), the Board shall not make any investment in securities issued or registered or other properties situated outside Malaysia except with the approval of the Minister of Finance.

Accounts and audit

18. (1) The Board shall keep proper accounts and other records in respect of its operations.

(2) The accounts of BERNAMA shall be audited by an auditor appointed by the Board with the approval of the Minister.

(3) The Board shall, as soon as may be after the end of each calendar year, submit to the Minister an audited account of the income and expenditure of the Board for that year together with a statement of its assets and liabilities.

(4) The Minister shall cause the account and statement submitted under subsection (3) together with a copy of any observations of the auditor thereon to be laid before both Houses of Parliament.

Delegation by the Board

19. (1) The Board may delegate, in writing under its common seal, to any person or body any of its duties as may be necessary to be performed in or outside Malaysia.

(2) Any person or body delegated with such duties under subsection (1) shall—

- (a) have no control over the moneys of BERNAMA; and
- (b) act in all respects in accordance with the discretion of the Board.

Board may establish committees

20. (1) The Board may establish committees to consider special questions as may be referred to the committees by the Board.

(2) The committees shall perform its functions according to the directions given to the committees by the Board.

Subscribers

21. The following classes of subscribers are entitled to enter into arrangements to have the services of BERNAMA:

- (a) newspapers operating in Malaysia; and
- (b) any other newspapers, news agencies, institutions, bodies or persons and any other subscribers as may be authorized by the Board.

Income of BERNAMA

22. (1) The income of BERNAMA shall consist of subscriptions and contributions, grants, endowments, gifts or bequests as may be made to or in favour of BERNAMA.

(2) The income of BERNAMA shall be applied solely for the following purposes:

- (a) to promote the objects of BERNAMA;
- (b) to pay remuneration, pension, superannuation, allowances and any provident fund scheme to any officer or servant employed or engaged under this Act; or
- (c) to pay any expenses incurred in pursuance of this Act.

(3) No portion of the income of BERNAMA shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit to any person.

Offices of BERNAMA

23. BERNAMA shall have a principal office in Malaysia and may establish such other office at such place in or outside Malaysia as the Board may determine.

Language of BERNAMA

24. The working languages of BERNAMA are the national language and the English language.

Guarantee of full service

25. (1) Notwithstanding any arrangements which BERNAMA may enter into for the reception and distribution of international news, subscribers to BERNAMA shall be guaranteed the right, on request and on terms in regard to payment to be decided by the Board, to receive through BERNAMA the full service supplied to BERNAMA by any international news agency.

(2) Arrangements for news collection and distribution made by BERNAMA shall be without prejudice to the right of the newspapers who are subscribers to BERNAMA to make their own independent arrangements for news coverage by their own correspondents.

(3) In subsection (2), “correspondents” include editorial staff of a newspaper and any person who writes or supplies news for a fee either as a part-time or full-time occupation.

Protection against liability of members of Board and Supervisory Council

26. No member of the Board or of the Supervisory Council shall incur any personal liability for any loss or damage caused by any act or omission in the management or conduct of the affairs of the Board or the Supervisory Council unless such loss or damage is occasioned by an intentionally wrongful act or omission on his part.

SCHEDULE

[Sections 7 and 11]

PART I

BOARD OF GOVERNORS

Tenure of office

1. (1) The Chairman and members of the Board shall hold office for a term not more than three years and shall be eligible for reappointment.

(2) The members of the Board representing the proprietors of newspapers shall hold office as representatives of their newspapers.

(3) Four members of the Board shall represent the Ministry of Communications and Multimedia, Department of Broadcasting, Department of Information and the External Information Division who shall be appointed from their respective Departments.

Alternate members

2. In appointing a member of the Board, the Yang di-Pertuan Agong may nominate an alternate member who, when attending a Board meeting in place of the full member, shall have full voting rights.

Vacation of office and filling of vacancy

3. (1) The office of a member of the Board is vacated if—

- (a) he dies;
- (b) he ceases to be qualified;
- (c) he becomes a bankrupt, or is a lunatic or of unsound mind;
- (d) he absents himself from three consecutive meetings without leave of the Board, and the Board passes a resolution declaring his office vacant;
- (e) his resignation is accepted by the Board; or
- (f) he attains the age of seventy years.

(2) In the case of—

- (a) a member representing a newspaper proprietor, such member of the Board shall vacate his office if he ceases to be associated with the newspaper which he has represented, or on the newspaper or newspapers he has represented ceasing publication or ceasing to be a subscriber to BERNAMA; and
- (b) any other members of the Board, he shall vacate his office if he ceases to be associated with the Government or the Government Department which he has represented.

(3) The office of an alternate member of the Board shall be vacated on the occurrence of any of the events in paragraph (1)(a), (b), (c), (e) or (f) or of any of the events in paragraph (2)(a) or (b).

Procedure on filling of vacancies

4. (1) The following procedures shall be adopted for filling vacancies on the Board arising from any of the reasons enumerated in subparagraph 3(1):

- (a) in the case of members representing the proprietors of newspapers, the appointment for the purpose of filling any vacancy shall be made on the recommendation of the proprietors of the newspaper whose representative has vacated his post; and
- (b) in the case of a vacancy arising through a newspaper whose proprietor is represented on the Board ceasing publication or ceasing to be a subscriber to BERNAMA, the proprietors of the remaining newspapers who subscribe to BERNAMA shall make a recommendation to the Yang di-Pertuan Agong.

(2) The period of office of any member appointed to replace another member who has vacated his post shall be the remainder of the term of office for which the latter member was originally appointed.

Meetings

5. (1) The Board shall meet at least once in six months and in every case meet within one month of receiving a report from the Supervisory Council concerning a complaint of failure by BERNAMA to comply with any of its objects or principles.

(2) The Chairman of the Board shall have the power to convene a meeting of the Board whenever he deems it necessary.

(3) A Board meeting shall be convened at the written request of not less than half of the members and for this purpose an alternate member is deemed to be a full member if he is acting in the absence of the full member.

(4) A quorum for a Board meeting shall be six of which three shall be members representing the proprietors of newspapers.

(5) The decision of the Board shall be by a simple majority.

(6) The Board may invite any person to attend its meetings.

Procedure

6. Subject to this Act, the Board may determine its own procedure.

PART II

SUPERVISORY COUNCIL

Tenure of office, *etc.*

1. (1) The President and members of the Council shall hold office for a term not more than three years and shall be eligible for reappointment.

(2) The term of office of a new member appointed to fill a vacancy shall be the remainder of the term of office of the other members.

Vacation of office

2. The office of a member of the Council other than a member appointed by office is vacated if—

(a) he dies;

(b) he ceases to be qualified;

- (c) he becomes a bankrupt, or is a lunatic or of unsound mind;
- (d) he absents himself from three consecutive meetings without leave of the Council, and the Council passes a resolution declaring his office vacant;
- (e) his resignation is accepted by the Council; or
- (f) he attains the age of seventy years.

Meetings

3. (1) The Council shall meet within one month of its appointment and in addition to such meeting shall meet at least once in a year and shall appoint the Secretary of the Board as Secretary to the Council.

(2) A meeting of the Council shall be convened within one month of any matter being formally referred to it by the Board or on receipt of any complaint from a newspaper, radio or television subscriber to BERNAMA.

(3) Three members shall constitute a quorum for a meeting of the Council.

Expenses

4. All expenses of the Council shall be paid out of the funds of BERNAMA.

Procedure

5. Subject to this Act, the Council may determine its own procedure.

LAWS OF MALAYSIA

Act 780

BERNAMA ACT 1967

(Revised—2016)

*Particulars under paragraphs 7(ii) and (iii) of the Revision of
Laws Act 1968 [Act 1]*

LIST OF AMENDMENTS

Amending law	Short title	In force from
Act A513	Pertubuhan Berita Nasional Malaysia (Amendment) Act 1981	20-06-1979
Act A777	Pertubuhan Berita Nasional Malaysia (Amendment) Act 1990	31-08-1990
Act 478	Revocation of Exemption From Payment of Stamp Duties Act 1992	21-02-1992
Act A1011	Bernama (Amendment) Act 1998	20-03-1998

LIST OF LAWS OR PARTS THEREOF SUPERSEDED

No.	Title
Act 449	Bernama Act 1967

LAWS OF MALAYSIA**Act 780****BERNAMA ACT 1967**

(Revised—2016)

LIST OF SECTIONS AMENDED

Section	Amending authority	In force from
Preamble	Act A777	31-08-1990
2	Act A777	31-08-1990
3	Act A777	31-08-1990
	Act A1011	20-03-1998
3A	Act A777	31-08-1990
4	Act A777	31-08-1990
7	Act A777	31-08-1990
22	Act 478	21-02-1992
Schedule	Act A513	20-06-1979

LAWS OF MALAYSIA

Act 780

BERNAMA ACT 1967

(Revised—2016)

LIST OF AMENDMENTS MADE BY THE COMMISSIONER OF LAW REVISION UNDER SECTION 6 OF THE REVISION OF LAWS ACT 1968 [ACT 1]

Provision	Particulars of amendments	Authority for amendment
Table of contents	Altered	paragraph 6(1)(vii)
Throughout the Act	Word “BERNAMA” substituted for “Bernama”	paragraph 6(1)(vi)
Long title	1. Comma inserted after the words “and to”	paragraph 6(1)(xvi)
	2. Words “or in English the Malaysian National News Agency” omitted	paragraph 6(1)(xxi)
	3. Word “provide” substituted for “make provisions”	paragraph 6(1)(xxi)
	4. Words “of the Pertubuhan Berita Nasional Malaysia” substituted for “thereof”	paragraph 6(1)(xxi)
Enacting clause	Omitted	subparagraph 6(1)(i)(f)
section 1	1. Word “applies” substituted for “and shall apply”	paragraph 6(1)(xxi)
	2. Divided into subsections 1(1) and (2) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
section 2	1. Words “, unless the context otherwise requires” inserted after the word “Act”	subparagraph 6(1)(iv)(a)
	2. Interpretations of “BERNAMA” and “Board” inserted before the interpretation of “news or news material” respectively	paragraphs 6(1)(iii) and (xxiv)

Provision	Particulars of amendments	Authority for amendment
subsection 3(1)	1. Words “A body corporate by the name of “Pertubuhan Berita Nasional Malaysia”, or in English the “Malaysian National News Agency”), is established” substituted for “There is hereby established a body corporate by the name of “Pertubuhan Berita Nasional Malaysia” or in English “The Malaysian National News Agency” (hereinafter referred to as “Bernama”))”	paragraph 6(1)(xxi)
	2. Divided into subsection 3(1) and paragraphs 3(2)(a) and (b) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
subsection 3(2)	1. Renumbered as subsection (3)	paragraph 6(1)(xii)
	2. Words “subsection (2)” substituted for “the foregoing powers”	paragraph 6(1)(xxi)
	3. Comma after the word “but” omitted	paragraph 6(1)(xvi)
	4. Words “any of the objects” substituted for “any of them”	paragraph 6(1)(xxi)
subsection 3(3)	Renumbered as subsection 3(4)	paragraph 6(1)(xii)
subsections 3(4) and (5)	Omitted	paragraph 6(1)(x)
section 3A	Renumbered as section 5	paragraph 6(1)(xii)
subsection 4(1)	1. Renumbered as section 6	paragraph 6(1)(xii)
	2. Word “are” substituted for “shall be”	paragraph 6(1)(xxi)
subsection 4(2)	1. Renumbered as new section 8 with consequential alterations made	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Functions of the Board ” inserted before the new section 8	paragraph 6(1)(xxiv)
section 5	Renumbered as section 7	paragraph 6(1)(xii)
subsection 5(1)	1. Word “is vested” substituted for “shall be vested”	paragraph 6(1)(xxi)

Provision	Particulars of amendments	Authority for amendment
	2. Words “(in this Act referred to as “the Board”)” omitted	paragraph 6(1)(xxi)
subsection 5(2)	1. Divided into subsections 7(2) and (3) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
	2. Words “who are citizens of Malaysia” substituted for “, who shall be citizens, namely”	paragraph 6(1)(xxi)
paragraph 5(2)(b)	1. Words “not more than six” substituted for “not exceeding six in number” and transposed before the words “representatives”	paragraphs 6(1)(xxi) and (xiii)
	2. Word “and” inserted after semicolon	paragraph 6(1)(xxiv)
paragraph 5(2)(c)	1. Words “not more than six” substituted for “not exceeding six in number” and transposed before the words “representatives”	paragraphs 6(1)(xxi) and (xiii)
	2. Words “who are subscribers” substituted for “which are subscribers”	paragraph 6(1)(xv)
subsection 5(3)	1. Renumbered as subsection 7(4)	paragraph 6(1)(xii)
	2. Words “who are subscribers” substituted for “which are subscribers”	paragraph 6(1)(xv)
subsection 5(4)	1. Renumbered as subsection 7(5)	paragraph 6(1)(xii)
	2. Word “the” inserted before the words “members” and “proprietors”	paragraph 6(1)(xv)
	3. Words “referred to” substituted for “described”	paragraphs 6(1)(iii) and (xxi)
	4. Word “amongst” substituted for “among”	paragraph 6(1)(xv)
	5. Word “the” before “newspapers” omitted	paragraph 6(1)(xv)
	6. Words “who are subscribers” substituted for “which are subscribers”	paragraph 6(1)(xv)
subsections 5(5) and (6)	Omitted	subparagraph 6(1)(i)(aa)

Provision	Particulars of amendments	Authority for amendment
subsection 5(7)	1. Renumbered as subsection 7(6)	paragraph 6(1)(xii)
	2. Word “the” inserted before the word “members”	paragraph 6(1)(xv)
section 6	1. Divided and renumbered as sections 9 and 10 with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
	2. In the shoulder note, words “ Establishment of Supervisory Council ” substituted for “ Supervisory Council ”	paragraphs 6(1)(iii) and (xxiv)
	3. Words “A Supervisory Council is established.” substituted for “There shall be established a Supervisory Council charged with the following functions:”	paragraph 6(1)(xxi)
	4. Shoulder note “ Functions of Supervisory Council ” inserted before new section 10	paragraph 6(1)(xxiv)
subsection 7(1)	1. Divided and renumbered as subsections 11(1) and (2) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
	2. In the shoulder note, word “ Supervisory ” inserted before “ Council ”	paragraph 6(1)(iii)
	3. Words “The Supervisory Council shall comprise the following members who shall be appointed by the Yang di-Pertuan Agong” substituted for “The Members of the Supervisory Council shall be appointed by the Yang di-Pertuan Agong and shall be as follows”	paragraphs 6(1)(xxi) and (xxiv)
	4. Words “Chief Justice” substituted for “Lord President”	paragraph 6(1)(xvii)
	5. In paragraph (b) and (c), semicolon substituted for full stop	paragraph 6(1)(xvi)
subsection 7(2)	1. Renumbered as subsection 11(3)	paragraph 6(1)(xii)
	2. Word “the” inserted before the word “members”	paragraph 6(1)(xv)

Provision	Particulars of amendments	Authority for amendment
section 8	1. Renumbered as section 12	paragraph 6(1)(xii)
	2. In the shoulder note, word “ Supervisory ” inserted before the word “ Council ”	paragraph 6(1)(iii)
subsection 8(1)	Divided into paragraphs (1)(a) and (b) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
subsection 8(2)	Divided into paragraphs (2)(a) and (b) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
subsection 8(3)	Rearranged with consequential alterations made	paragraphs 6(1)(xiii), (xxi) and (xxiv)
subsection 8(4)	Commas inserted—	paragraph 6(1)(xvi)
	a. after the word “recommendations”;	
	b. after the words “if any”;	
	c. after the word “shall” and	
	d. before the words “be published”	
section 9	1. Renumbered as section 13	paragraph 6(1)(xii)
	2. In subsection (1), words “shall appoint” substituted for “shall have power to appoint”	paragraph 6(1)(xxi)
section 10	1. Renumbered as section 14	paragraph 6(1)(xii)
	2. In subsection (1), word “who” inserted before the word “responsible”	paragraphs 6(1)(xv) and (xxiv)
section 11	1. Renumbered as section 15	paragraph 6(1)(xii)
	2. Words “The Board may” substituted for “Without prejudice to any other powers conferred upon it by virtue of this Act, the Board shall have power at its discretion to”	paragraph 6(1)(xxi)
section 12	1. Renumbered as section 16	paragraph 6(1)(xii)
	2. Words “from time to time” omitted	paragraph 6(1)(xxi)
	3. Words “required by the Board” substituted for “required by it”	paragraph 6(1)(iii)
section 13	1. Renumbered and divided into subsections 17(1) and (2) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)

Provision	Particulars of amendments	Authority for amendment
	2. Words “for the time being” omitted	paragraph 6(1)(xxi)
section 14	Renumbered as section 18	paragraph 6(1)(xii)
subsection 14(3)	1. Divided into subsections 18(3) and 18(4) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
	2. Words “The Board shall” transposed before the words “as soon as” with consequential alterations made	paragraphs 6(1)(xiii) and (xxiv)
	3. Words “both Houses” substituted for “each House”	paragraphs 6(1)(iii) and (xxiv)
subsection 15(1)	Renumbered, rearranged and divided into subsection 19(1) and paragraphs 19(2)(a) and (b) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
subsection 15(2)	1. Renumbered and divided into subsections 20(1) and (2) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
	2. Shoulder note “ Board may establish committees ” inserted before new section 20	paragraph 6(1)(xxiv)
	3. Words “from time to time,” omitted	paragraph 6(1)(xxi)
	4. Word “establish” substituted for “form”	paragraph 6(1)(iii)
	5. Words “to the committees” substituted for “to them”	paragraph 6(1)(xxi)
	6. Word “the” inserted before the word “directions”	paragraph 6(1)(xv)
	7. Words “to the committees” substituted for “to it”	paragraph 6(1)(xxi)
section 16	1. Renumbered as section 21	paragraph 6(1)(xii)
	2. Word “are” substituted for “shall be”	paragraph 6(1)(xxi)
section 17	1. Renumbered as section 22	paragraph 6(1)(xii)
	2. In subsection (1), words “in favour of BERNAMA” substituted for “in favour of it”	paragraph 6(1)(xxi)

Provision	Particulars of amendments	Authority for amendment
subsection 17(2)	1. Divided into subsections 22(2) and 22(3) with consequential alterations made 2. Word “howsoever” after the words “or otherwise” omitted	paragraphs 6(1)(xii), (xiii) and (xiv) paragraph 6(1)(xxi)
subsection 18(1)	1. Rearranged, divided and renumbered as subsections 4(1) and (2) with consequential alterations made 2. In the shoulder note, words “Common seal” substituted for “Seal of Bernama” 3. Words “the seal” substituted for “such seal” 4. Words “from time to time” omitted	paragraphs 6(1)(xii), (xiii) and (xxiv) paragraphs 6(1)(iii) and (vii) paragraph 6(1)(xxi) paragraph 6(1)(xxi)
subsection 18(2)	1. Renumbered as subsection 4(3) 2. Words “the seal” substituted for “such seal” 3. Words “that the same” omitted 4. Divided into subsections 4(3) and 4(4) with consequential alterations made	paragraph 6(1)(xii) paragraph 6(1)(xxi) paragraph 6(1)(xxi) paragraphs 6(1)(xii), (xiii) and (xxiv)
section 19	1. Renumbered as section 23 2. Words “from time to time” omitted	paragraph 6(1)(xii) paragraph 6(1)(xxi)
section 20	1. Renumbered as section 24 2. Word “are” substituted for “shall be”	paragraph 6(1)(xii) paragraph 6(1)(xxi)
section 21	1. Renumbered as section 25 2. In subsection (1), words “or make” after “enter into” omitted 3. In subsection (2), words “newspapers who are subscribers to BERNAMA” substituted for “newspaper subscribers” 4. In subsection (3), word “full-time” substituted for “whole-time”	paragraph 6(1)(xii) paragraph 6(1)(xxi) paragraphs 6(1)(xxi) and (xxiv) paragraph 6(1)(iii)

Provision	Particulars of amendments	Authority for amendment
section 22	Omitted	paragraph 6(1)(x)
section 23	1. Renumbered as section 26	paragraph 6(1)(xii)
	2. Word “Supervisory” inserted before the word “Council” wherever it appears	paragraph 6(1)(iii)
section 24	Omitted	subparagraph 6(1)(i)(aa)
SCHEDULE Heading	Words “Sections 7 and 11” substituted for “Sections 5 and 7”	paragraphs 6(1)(xii) and (xxiv)
SCHEDULE PART I paragraph 1	1. Shoulder note “ Tenure of office ” inserted	paragraphs 6(1)(iii) and (xxiv)
	2. Renumbered as subparagraph 1(1)	paragraphs 6(1)(xii) and (xxiv)
	3. Words “more than” substituted for “exceeding”	paragraphs 6(1)(iii) and (xxiv)
paragraph 2	Renumbered as subparagraph 1(2)	paragraphs 6(1)(xii) and (xxiv)
paragraph 3	1. Renumbered as subparagraph 1(3)	paragraphs 6(1)(xii) and (xxiv)
	2. Words “Communications and Multimedia” substituted for “Information”	paragraph 6(1)(xvii)
	3. Word “Federal” omitted	paragraph 6(1)(xvii)
paragraph 4	1. Renumbered as paragraph 2	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Alternate members ” inserted	paragraphs 6(1)(iii) and (xxiv)
	3. Comma inserted after “Board” and “member who”	paragraph 6(1)(xvi)
paragraph 5	1. Renumbered as paragraph 3	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Vacation of office and filling of vacancy ” inserted	paragraphs 6(1)(iii) and (xxiv)
	3. Word “is vacated” substituted for “shall be vacated”	paragraph 6(1)(xxi)

Provision	Particulars of amendments	Authority for amendment
	4. In subparagraphs (a) to (d), word “if” transposed after the word “vacated”	paragraph 6(1)(iii)
subsubparagraph 5(1)(c)	Words “a bankrupt, or is a lunatic” substituted for “bankrupt, lunatic”	paragraphs 6(1)(xv) and (xxiv)
subsubparagraph 5(1)(e)	1. Word “in the event of” omitted	paragraph 6(1)(xxi)
	2. Word “is” substituted for “being”	paragraph 6(1)(xv)
subsubparagraph 5(1)(f)	Words “he attains the age of seventy years” substituted for “on the occasion of his seventieth birthday”	paragraph 6(1)(iii)
subsubparagraph 5(2)(a)	Word “and” inserted after semicolon	paragraph 6(1)(xxiv)
paragraph 6	1. Renumbered as subparagraph 4(1)	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Procedure on filling of vacancies ” inserted	paragraphs 6(1)(iii) and (xxiv)
	3. Words “subparagraph 3(1)” substituted for “paragraph 5”	paragraph 6(1)(xxiv)
	4. Word “who” substituted for “which”	paragraph 6(1)(xv)
paragraph 7	1. Renumbered as subparagraph 4(2)	paragraphs 6(1)(xii) and (xxiv)
paragraph 8	1. Renumbered as subparagraph 5(1)	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Meetings ” inserted	paragraphs 6(1)(iii) and (xxiv)
paragraph 9	1. Renumbered and divided into subparagraphs 5(2) and (3) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
	2. Word “the” inserted before the word “power”	paragraph 6(1)(xv)
	3. Parenthesis omitted	paragraph 6(1)(xvi)
paragraph 10	Renumbered and divided into subparagraphs 5(4) and (5) with consequential alterations made	paragraphs 6(1)(xii), (xiii) and (xxiv)
paragraph 11	Renumbered as subparagraph 5(6)	paragraphs 6(1)(xii) and (xxiv)

Provision	Particulars of amendments	Authority for amendment
paragraph 12	1. Renumbered as paragraph 6	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Procedure ” inserted	paragraphs 6(1)(iii) and (xxiv)
SCHEDULE PART II paragraph 1	1. Renumbered as subparagraph 1(1)	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Tenure of office, etc. ” inserted	paragraphs 6(1)(iii) and (xxiv)
paragraph 2	Renumbered as subparagraph 1(2)	paragraphs 6(1)(xii) and (xxiv)
paragraph 3	Renumbered as subparagraph 3(3)	paragraphs 6(1)(xii) and (xxiv)
paragraph 4	1. Renumbered as subparagraph 3(1)	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Meetings ” inserted	paragraphs 6(1)(iii) and (xxiv)
paragraph 5	1. Renumbered as paragraph 4	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Expenses ” inserted	paragraphs 6(1)(iii) and (xxiv)
	3. Word “paid” substituted for “met”	paragraph 6(1)(iii)
paragraph 6	Renumbered as subparagraph 3(2)	paragraphs 6(1)(xii) and (xxiv)
paragraph 7	1. Renumbered as paragraph 2	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Vacation of office ” inserted	paragraphs 6(1)(iii) and (xxiv)
	3. Word “by office is vacated” substituted for “by virtue of office shall be vacated”	paragraph 6(1)(xxi)
	4. In subsubparagraphs (a) to (d), word “if” transposed after the word “vacated”	paragraph 6(1)(iii)
subsubparagraph 7(1)(c)	Words “a bankrupt, or is a lunatic” substituted for “bankrupt, lunatic”	paragraphs (xv) and (xxiv)
subsubparagraph 7(1)(e)	2. Word “in the event of” omitted	paragraph 6(1)(xxi)

Provision	Particulars of amendments	Authority for amendment
	3. Word “is” substituted for “being”	paragraph 6(1)(xv)
subsubparagraph 7(1)(f)	Words “he attains the age of seventy years” substituted for “on the occasion of his seventieth birthday”	paragraphs 6(1)(iii)
paragraph 8	1. Renumbered as paragraph 5	paragraphs 6(1)(xii) and (xxiv)
	2. Shoulder note “ Procedure ” inserted	paragraphs 6(1)(iii) and (xxiv)